

6	Yum vs. U.S. Bancorp	<u>Motion to Set Aside Entry of Default</u> The court GRANTS Defendant SOFI LENDING CORP's unopposed motion to set aside the default entered against it on 1/27/26. The motion is supported by an attorney affidavit of fault, which sufficiently shows inadvertence. Defense counsel timely filed an Answer on 1/23/26 but mistakenly stated that the Answer was being filed on behalf of "SoFi <u>Bank</u> Lending Corp." (ROA 43, emphasis supplied.) While the Answer was accepted by the Clerk's Office for filing, the Clerk's Office also apparently entered default shortly thereafter on 1/27/26, against "SoFi Lending Corp" as the Answer filed on 1/23/26 was not on behalf of "SoFi Lending Corp". The motion is timely and moving defendant has established a proper ground for setting aside the default. As such, the court VACATES the default entered on 1/27/26. Moving Defendant SHALL separately file and serve its proposed Answer (ROA 71) within 7 days of this ruling. Moving Defendant to give notice.
7	Keller vs. Etheridge	<u>Motion for Leave to File First Amended Complaint</u> OFF-CALENDAR. The hearing was vacated after the moving party withdrew the motion. (See 5/12/26 Minute Order [ROA 225] and Plaintiff's Notice of Withdrawal [ROA 221].)
8	Sierra vs. POPA Federal Credit Union	<u>Motion for New Trial</u>

The court **DENIES** Plaintiff NANCY SIERRA's motion for a new trial.

The court entered judgment on 3/12/26, and the court clerk mailed the judgment to the parties on 3/12/26. (ROAs 623, ROA 624.) Thereafter, Plaintiff timely filed a notice of intention to move for new trial on 3/26/26. (ROA 635.)

As Defendants POPA FEDERAL CREDIT UNION and LESLIE LARA note, Plaintiff thereafter filed *untimely* supporting papers for the motion without requesting or obtaining an extension of time to do so. Concerning motions for new trial, the Code of Civil Procedure states, "within 10 days of filing the notice, the moving party shall serve upon all other parties and file any brief and accompanying documents, including affidavits in support of the motion." (Code Civ. Proc., § 659a.)

Although due by Monday, 4/6/26, Plaintiff did not file her supporting papers until 4/20/26 — i.e., 26 days after the notice was filed (and over twice the statutory time period to do so). (ROA 640.) Plaintiff also thereafter filed a supplemental letter brief in support of the motion on 4/22/26, which contained additional exhibits in support of the motion. (ROA 642.)

The court does not consider the untimely papers. Both the memorandum (ROA 640) and supplemental letter brief (ROA 642) are untimely under section 659a. No extension of time for filing was requested or granted, good cause for an extension was not shown, and any extension of time cannot exceed 10 days. (See Code Civ. Proc., § 659a ["These deadlines may, for good cause shown by affidavit or by written stipulation of the parties, be extended by any judge for an additional period not to exceed 10 days."].)

The only timely supporting document filed by Plaintiff was the notice of intention to move for new trial (ROA 635), which is insufficient to warrant granting the motion. According to that document, Plaintiff moves for a new trial on the grounds of: (1) irregularity in the proceedings of the court, (2) insufficiency of the evidence, and (3) error in law.